

TENTATIVE RULINGS
Judge SHEILA RECIO, Dept. W8

Law & Motion is heard on Fridays at 9:30 a.m., *unless specially set.*

CIVIL COURT REPORTERS: Department W8 does not provide the services of an official court reporter for law and motion hearings. Please see the court's website for rules and procedures for court reporters obtained by the parties.

POSTING TENTATIVES: Department W8 endeavors to post tentative rulings for law and motion hearings by 5 p.m. on Thursdays. **Do NOT call the Department for a tentative ruling if none is posted.** The court will NOT entertain a request for continuance or the filing of further documents once a tentative ruling has been prepared.

SUBMITTING ON THE TENTATIVE: If ALL sides intend to submit on the tentative ruling, please advise the Department's clerk or courtroom attendant by calling (657) 622-5908. If so advised, the tentative ruling shall become the court's final ruling and the prevailing party shall file and serve a Notice of Ruling and if appropriate, prepare a Proposed Order pursuant to Rule 3.1312 of the California Rules of Court. **Please do not call the Department unless ALL parties submit on the tentative ruling.**

NO APPEARANCES: If no one appears for the hearing and the court has not been notified that all parties submit on the tentative ruling, the court will determine if the matter is taken off calendar, the tentative ruling becomes the final ruling, or a different order is issued at the hearing. (See *Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

REMOTE APPEARANCES: Department W8 conducts non-evidentiary proceedings, including law and motion via Zoom through the court's online check-in process available through the court's website at <https://www.occourts.org/general-information/covid-19-response/civil-covid-19-response/civil-remote-hearings>. All counsel and self-represented parties appearing for such hearings **must check-in at least 5 minutes before** the 9:30 a.m. hearing on Friday.

The court encourages the parties and attorneys to take advantage of remote appearances for non-evidentiary hearings to reduce travel time, parking costs, and potential hearing delays. However, keep in mind that potential technological or audibility issues could arise when using remote technology, which may require a delay of or halt the proceedings. To help

avoid such, please log in and test your equipment in advance of the hearing. Also, if technological or audibility issues arise during the proceeding, please call **(657) 622-5908**.

All remote video participants shall comply with the court's "**Guidelines for Remote appearances**", found at <https://www.occourts.org/system/files/guidelinesforremote proceedings.pdf>.

IN-PERSON: Parties preferring to appear in-person for a law and motion hearing may do so, consistent with Section 367.75 of the Code of Civil Procedure and Orange County Local Rule 375.

PUBLIC ACCESS: The courtroom remains open for all evidentiary and non-evidentiary proceedings.

No filming, broadcasting, photography, or electronic recording is permitted of the video session pursuant to California Rules of Court, rule 1.150 and Orange County Superior Court rule 180.

July 24, 2026

#	Case Name	
3	APEX Events, LLC vs. Advocate Inc.	<u>Motion for Extension of Time to Answer</u> OFF-CALENDAR as MOOT. Defendants ADVOCATE INC. d.b.a. NAVA BENEFITS and ED LIGONDE filed a motion on 5/6/26, requesting an extension of time to file an answer. Defendants thereafter filed their answer on 6/17/26. As such, the motion is MOOT.
4	Djavid vs. Vidal	<u>Motion for Leave (re First Amended Complaint)</u>
5	Elias vs. Elias	<u>Motion to Set Aside Default</u>

7	Wang vs. Bui	<u>Motion to Tax Costs</u>
8	BRE-FMCA, LLC vs. Tealeaf Corporation	<u>Motions to Compel Further Responses re</u> 1. <u>Requests for Admissions</u> 2. <u>Special Interrogatories</u> 3. <u>Form Interrogatories</u> 4. <u>Production of Documents</u>
9	Grossman vs. 1031 Crowdfunding, LLC	<u>Demurrer</u> OFF-CALENDAR as MOOT. Section 472 of the Code of Civil Procedure grants a plaintiff the right to file an amended complaint in response to a demurrer or motion to strike directed at the original complaint, if filed and served by the date for filing an opposition brief. Here, the filing of the First Amended Complaint (FAC) on 7/13/26 renders the demurrer moot since the original Complaint has been superseded and the FAC is now the operative pleading. (See, e.g., <i>State Comp. Ins. Fund v. Superior Court</i> (2010) 184 Cal.App.4th 1124, 1131 [“Because there is but one complaint in a civil action [citation], the filing of an amended complaint moots a motion directed to a prior complaint.”]; <i>JKC3H8 v. Colton</i> (2013) 221 Cal.App.4th 468, 477 [“the filing of an amended complaint renders moot a demurrer to the original complaint”].)
10	Gordon vs. Gordon	<u>Demurrer</u> (Case Management Conference)

12	Kim vs. Jetema USA Inc.	<u>Demurrer (re First Amended Cross-Complaint)</u> <u>Anti SLAPP Motion</u>
13	National Funding, Inc. vs. Rise Ocean Chef Lee Inc.	<u>Motion for Summary Judgment/Adjudication</u>